

KOSTIANTYN MARS
6001 W Parmer Ln, Ste 370 448
Austin, TX 78727
Phone Number: 202.505.9444
Email: legal@marsjustice.io

KOSTIANTYN MARS, PRO SE

**UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF TEXAS
AUSTIN DIVISION**

KOSTIANTYN MARS

Plaintiff,

vs.

STATE OF CALIFORNIA;

GAVIN NEWSOM, in his official capacity as Governor of the
State of California;

BETH MCGOWEN, in her official and individual capacities as
Presiding Judge of the Santa Clara County Superior Court;

JULIE EMEDE, in her official and individual capacities as
Presiding Judge of the Santa Clara County Superior Court;

SANTA CLARA COUNTY SUPERIOR COURT;

HANNA MARS

(Petitioner in the above-referenced state matters);

and all other judges, officials, agents, and co-conspirators acting
under color of law, including but not limited to Stephen Lowney,
Andrea Flint, James Towery, Thomas Kuhnle, Benjamin
Williams, Michael Clark, and Jessica Tenorio,

Defendants.

) Case No. :

)
) **CIVIL RICO COMPLAINT**
) **(18 U.S.C. §§ 1961–1968;**
) **42 U.S.C. § 1983)**

) **DATE:**
) **TIME:**
) **DEPT:**

CIVIL RICO COMPLAINT
(18 U.S.C. §§ 1961–1968; 42 U.S.C. § 1983)

I. INTRODUCTION

1. Plaintiff Kostiantyn Mars brings this civil action under the Racketeer Influenced and Corrupt Organizations Act (RICO), 18 U.S.C. § 1964(c), and 42 U.S.C. § 1983 for damages and equitable relief.
2. This action arises from a coordinated pattern of racketeering activity conducted under color of California state authority between 2022 and the present. The enterprise has resulted in the international abduction of Plaintiff's minor son Max Mars, extortion of Plaintiff's 401(k) funds, vehicle title, and the minor child's passport and identity documents, fabricated criminal charges, unlawful arrests and warrants, denial of access to the courts, and systemic obstruction of justice.

II. JURISDICTION AND VENUE

1. This Court has subject-matter jurisdiction pursuant to 28 U.S.C. § 1331 and 18 U.S.C. § 1964(c).
2. Supplemental jurisdiction exists under 28 U.S.C. § 1367 over related state-law claims.
3. Venue is proper in the Western District of Texas under 28 U.S.C. § 1391(b) because Plaintiff resides in Austin, Texas, and a substantial part of the harm continues to be felt in this District.

III. THE CRIMINAL ENTERPRISE

1. Defendants formed and participated in an association-in-fact enterprise (the "Santa Clara Mafia Cartel," also known as the BBMP syndicate) that operated in criminal cooperation with the Ukrainian mafia cartel "Kodlo Gondona" ("SI Trans Group"), led by criminal associates Ivan "Pedofile" Omelchenko and Serhii "Gondon" Nahorny, father of Respondent Hanna Mars.
2. The purpose of this interstate and international criminal enterprise was to extort money and assets from Plaintiff, traffic his minor son Max Mars outside the United States to war zone in Ukraine into the custody of Serhii "Gondon" Nahorny (father of Respondent Hanna Mars), and conceal judicial corruption through the abuse of state court authority.
3. The Santa Clara Mafia Cartel (disqualified judges Lowney, Flint, Towery, criminal court judges Kuhnle, Williams, Clark, and DCSS official Jessica Tenorio) provided the color-of-law mechanism with cover-up by judicial oversight officials (Presiding Judges

Beth McGowen and Julie Emede, California Commission on Judicial Performance staff member Tania Schrag), while Ukrainian mafia cartel “Kodlo Gondona” supplied the foreign execution arm, enabling the international abduction of Plaintiff’s son Max Mars, extortion of Plaintiff’s 401(k) funds and vehicle title, and the infliction of severe damages through fabricated criminal charges, unlawful incarceration, and denial of court access.

IV. PREDICATE ACTS OF RACKETEERING

Each of the following constitutes a predicate act under 18 U.S.C. § 1961(1):

1. **Extortion** (18 U.S.C. § 1951) - Coordinated threats of incarceration and denial of hearings by disqualified Judge Stephen Lowney used to coerce surrender of Plaintiff’s 401(k) division (through court-appointed expert Barbara Strasen instead of the official plan-provider QDRO), vehicle title, and minor child Max Mars’s passport, green card, and identity documents.
2. **Kidnapping and Child Trafficking** (18 U.S.C. § 1201) - Joint facilitation by the Santa Clara Mafia Cartel and Ukrainian mafia cartel “Kodlo Gondona” of the international abduction of Plaintiff’s son Max Mars outside the United States to Ukraine into the custody of Serhii “Gordon” Nahornyy.
3. **Mail and Wire Fraud / Money Laundering (18 U.S.C. §§ 1341, 1343, 1956)** - Transmission of falsified financial documents and court orders to support unlawful wage garnishment in DCSS Case No. 200000002626999 and transfer of extorted funds to private accounts connected with the criminal enterprise using international channels.
4. **Obstruction of Justice and Retaliation** (18 U.S.C. § 1503) - Continuation of adjudication after disqualification of judges Lowney, Flint, and Towery, denial of hearings, and concealment of disqualifications by presiding judges.
5. **Retaliation Against Witness** (18 U.S.C. § 1513) - Fabrication of criminal charges (B2402220), issuance of multiple arrest and bench warrants, and the void vexatious litigant order dated March 11, 2024 by disqualified Judge Lowney to silence Plaintiff and deny access to the courts.

These acts form a continuous pattern of racketeering activity spanning multiple years.

V. INJURY TO PLAINTIFF

As a direct and proximate result of Defendants' racketeering activity, Plaintiff has suffered substantial injury to his business and property, including but not limited to:

- Unlawful seizure of wages and accumulation of fabricated arrears through DCSS Case No. 200000002626999, resulting in direct financial loss exceeding **\$200,000**, as documented in **Exhibit A-53 (DCSS Wage Garnishment Summary Chart)** and **Exhibit A-54 (Total Extortion and Theft Summary Chart)** of the Consolidated Evidence Binder – Exhibit A;
- Blocking and freezing of Plaintiff's **401(k) retirement account** by his former employer at the direction of opposing counsel, causing loss of access to retirement funds and related economic harm;
- Theft of Plaintiff's vehicle (**VW Tiguan**, CA plate 7ZND242) through void court orders;
- Destruction of employment opportunities and professional reputation due to the fabricated criminal record and outstanding warrants, resulting in job loss and rescinded offers;
- **Severe credit damage** and bankruptcy-level financial distress caused by the coordinated racketeering enterprise;
- **Loss of custody** and companionship of his minor son **Max Mars**, **detained without access to phone and internet after kidnapping**, and **used as the leverage for extortion** of money, documents, and assets.

These injuries constitute harm to Plaintiff's business and property within the meaning of 18 U.S.C. § 1964(c).

VI. CAUSES OF ACTION

Count I – RICO § 1962(c): Conduct of the Enterprise Through a Pattern of Racketeering Activity

Count II – RICO § 1962(d): Conspiracy to Engage in Racketeering Activity

Count III – Deprivation of Civil Rights (42 U.S.C. § 1983)

Count IV – Obstruction of Justice (18 U.S.C. § 1503 et seq.)

VI. PRAYER FOR RELIEF

WHEREFORE, Plaintiff respectfully requests that the Court:

1. **Accept jurisdiction over all removed state proceedings** and exercise supplemental jurisdiction pursuant to **28 U.S.C. § 1367**;
2. **Declare all orders** issued by disqualified judges Andrea Flint, Stephen Lowney, and James Towery in the removed cases **void *ab initio* under California Code of Civil Procedure § 170.4(d)**;
3. Permanently enjoin Defendants from enforcing any orders, warrants, or judgments issued in the removed state proceedings;
4. Award Plaintiff **compensatory damages** in the amount of **\$250,000** (or such greater amount as proven at trial) for economic injuries, including but not limited to unlawful wage garnishment, blocked 401(k) retirement funds, theft of the VW Tiguan, lost wages and employment opportunities, credit damage, and consequential financial losses, as quantified in **Exhibit A-54 (Total Extortion and Theft Summary Chart)** of the Consolidated Evidence Binder – Exhibit A;
5. Award Plaintiff **treble damages** pursuant to **18 U.S.C. § 1964(c)** in the amount of **\$750,000** for injuries to Plaintiff's business and property caused by Defendants' pattern of racketeering activity, including the unlawful DCSS wage garnishment and related predicate acts of extortion and theft (as fully documented in Consolidated Evidence Binder – **Exhibit A, Set 5, Exhibits A-49 through A-54**);
6. Award Plaintiff **punitive and exemplary damages** in the amount of **\$5,000,000** (or such amount as the Court deems just and proper) to punish and deter the egregious, malicious, oppressive, and reckless conduct of the racketeering enterprise operating under color of law;
7. Award Plaintiff pre- and post-judgment interest at the maximum legal rate, together with costs of suit and reasonable attorney's fees pursuant to 18 U.S.C. § 1964(c) and 42 U.S.C. § 1988;
8. Order the **immediate release of all blocked 401(k) funds**, return of the **VW Tiguan** (or its fair market value), **cessation of all DCSS garnishment and arrears accrual**, and **expungement of the fabricated criminal record and vexatious litigant designation**;

- 1 9. **Restore full legal and physical custody of minor child Max Mars to Plaintiff** and
2 direct appropriate federal authorities to assist in the child's **return from international**
3 **abduction**;
- 4 10. **Grant all equitable relief requested** in the concurrently filed Notice of Removal and
5 Emergency Motion for Temporary Restraining Order, including dismissal of Criminal
6 Case B2402220, dismissal of DCSS Case 200000002626999, vacatur of all void orders,
7 restoration of custody of Max Mars, release of 401(k) funds, return of vehicle, name
8 changes, and removal from the vexatious litigant list;
- 9 11. Plaintiff respectfully requests that this Court refer the conduct of Hanna Mars and her
10 co-conspirators to the **United States Attorney for the Western District of Texas, the**
11 **Federal Bureau of Investigation**, and the **United States Department of Justice for**
12 **criminal investigation and prosecution** under 18 U.S.C. §§ 1201, 1204, 875, 241, and
13 242, and California Penal Code §§ 207, 209, and 278, for **aggravated kidnapping of**
14 **minor child Max Mars, his continued detention as a hostage without right of**
15 **contact, and the use of the minor child as leverage for extortion of money, 401(k)**
16 **funds, and identifying documents.**
- 17 12. Grant such other and further relief as this Court deems just and proper.

18 Respectfully submitted,

19 DATED: June 4, 2026

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KOSTIANTYN MARS
Pro Se

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